

Federal Maritime Commission, Washington, DC.

Informal Docket No. 2010(I)

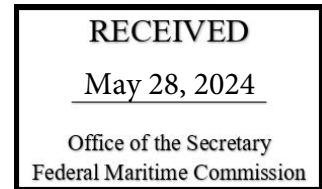
Simple Forwarding, Inc
(Complainant)

vs.

CULines
(Respondent)

and

Norton Lilly International
(Respondent)



I. The Complainant Simple Forwarding Inc (“Simple Forwarding” or “Complainant”) is an FMC-licensed Ocean Freight Forwarder and NVOCC, Consultancy, and Shipper, with a principal place of business located at 1113 State Rte 17M, Monroe NY 10950. The Claimant by and through its Representative Sara Dandan of FourOneOne LLC, submits this Complaint.

II. (A) The respondent CULines named above is a Company under the laws of the Peoples Republic of China who acts as an “Ocean Common Carrier” (“Common Carrier”), with a principal place of business located at Building 12, Lane 706 Wuxing Street, Pudong District, Shanghai 201204. Respondent engages in transportation by water on cross-Strait routes, as well as China to Southeast Asia, South Asia, Northeast Asia, Middle East, Europe and the United States of America routes.

(B) The respondent Norton Lilly International named above is a Corporation under the laws of the State of Alabama who acts as a Federal Maritime Commission-licensed “Non-Vessel Operating Common Carrier” (“NVOCC”) and “Ocean Freight Forwarder” under the name Norton Lilly Logistics LLC, and acts as an agent on behalf of, and for, CULines and other maritime entities, with a principal place of business located at One St. Louis Centre, Suite 5000, Mobile AL 36602.

III. That:

A. Claimant is a “shipper” as defined by 46 U.S.C. Section 40102(23).

B. The FMC has subject-matter jurisdiction over this Complaint pursuant to the Shipping Act and, in particular, 46 U.S.C. § Sections 41301 through 41309.

C. The FMC has personal jurisdiction over the Respondent CULines as an “Ocean Common Carrier” as defined in the Shipping Act of 1984, by 46 U.S.C. § 40102(18) and the Respondent Norton Lilly International (both parties collectively the “Respondents”) as a “Non-Vessel Operating Common Carrier” (“NVOCC”) and “Ocean Freight Forwarder” as defined in the Shipping Act of 1984, by 46 U.S.C. § 40102(17)(19) and as a “Person” involved in the oceanborne foreign commerce of the United States under provisions of Title 46, subtitle IV of the United States Code.

D. The Respondents failed to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of Claimant in violation of 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and the Interpretive Rule on Demurrage and Detention Under the Shipping Act, and these violations occurred on a normal, customary, and continuous basis.

E. Upon information and belief CUL and Norton Lilly knowingly imposed unreasonable and misapplied per diem fees in violation of 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and The Interpretive Rule on Demurrage and Detention Under the Shipping Act to Simple Forwarding.

F. Respondents were provided with terminal screenshots by Complainant that support their claims in regard to not being able to return the container due to restrictions imposed by Respondent CULines.

G. Respondents have been in possession of evidence that these charges are unreasonable and in violation of the Shipping Act since at least January 31st 2023, and have been provided with this evidence on multiple occasions.

H. Claimant initiated a dispute with Respondent Norton Lilly in regard to these unreasonable per diem charges. Respondent Norton Lilly then claimed that “Payment was made which is validation of charges , we cannot waive”

CUL-perdiem <CUL-perdiem@nortonlilly.com>
To: Friedy Hershler <friedy@simpleforwarding.com>
Cc: Laura Chica <laura.chica@newopportunitiesrucking.com>

Wed, Feb 1, 2023 at 8:49 AM

Good Day

Payment was made which is validation of charges , we cannot waive

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Please note all disputes will need a dated no appt screen shot showing your container # for all days you wish to dispute , as well as emodal or blue cargo screen shot for all terminals

“ All CUL empties will be accepted at Trapac without appointment.”

Be Kind, and have a wonderful day !

Jude Iman

CUL PER DIEM TEAM

I. Respondents at this point were in possession of evidence that the charges were misapplied and unreasonable yet they repeatedly refused to acknowledge this in an apparent attempt to avoid waiving the incorrectly charged fees they imposed.

VI. Respondents failed to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering the property of Claimant in violation of 46 U.S.C.S. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and The Interpretive Rule on Demurrage and Detention Under the Shipping Act; resulting in per diem charges in the amount of \$6825.00.

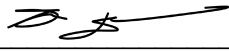
We request reparations to Claimant in the form of a waiver and dismissal of charges by Respondents in the amount of \$6825.00

VII. The undersigned authorizes the Settlement Officer to determine the above-stated claim pursuant to the informal procedure outlined in subpart S (46 CFR 502.301-502.305) of the Commission's informal procedure for adjudication of small claims subject to discretionary Commission review.

(Date) 05.20.2024

(Claimant's signature) Abe Orgel

(Claimant's address) 1113 State Rte 17M, Suite 204, Monroe NY 10950

(Signature of agent or attorney) 

(Agent's or attorney's address) 2501 Chatham Rd., Suite 8082, Springfield IL 62704

VERIFICATION

I, Abe Orgel, the Owner of Simple Forwarding Inc, am authorized to make this verification on behalf of Simple Forwarding Inc. I verify under penalty of perjury that to the best of my knowledge, information, and belief, that the foregoing is true and correct.

Abe Orgel, Owner, Simple Forwarding Inc

Signature: Abe Orgel

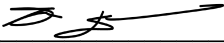
Date: 05.20.2024

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this complaint on Simple Forwarding Inc.'s behalf.

Sara Dandan

FourOneOne LLC
2501 Chatham Rd, Suite 8082
Springfield, IL 62704

Email: sara@fouroneone.io
Phone: 630-286-9846

Signature: _____

Date: 05/20/2024